

HOUSE BILL 858

By Alexander

AN ACT to amend Tennessee Code Annotated, Title 8;
Title 56; Title 63; Title 68 and Title 71, relative to
step therapy.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. The commissioner of commerce and insurance shall use existing departmental resources to conduct a study on the ease of access for patients and prescribing practitioners to insurers' online processes to request step therapy exceptions pursuant to § 56-7-3502(a). The purpose of the study is to determine whether insurers in this state are complying with the requirement of § 56-7-3502(a) in a manner that is easily accessible by the average patient or prescribing practitioner and does not impose any unnecessary barriers to making an exception request. The commissioner shall deliver the commissioner's findings from the study and any legislative recommendations to the chief clerk of the senate, the chief clerk of the house of representatives, and the legislative librarian no later than December 15, 2025. The commissioner may deliver such findings and recommendations by electronic means.

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it.